ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	94th Commission Meeting
DATE:	31 August 2022
TIME:	02:00 AM
VENUE:	Third Floor Meeting Room

#	AGENDA & DISCUSSION	DECISION
1.	**Seek advice on the way forward for NIA and PII- EAD** *EAD plans to carry out data collection for NIA from September and while three options on conducting Parliamentarian Integrity Index (PII) was submitted to both Houses, until recently, no response was received. Upon constant follow up, both the Houses approved in principle and no preference on either of the three options were given.* *Given the need to start recruiting enumerators and train them for data collection, since PII has been approved in principle, EAD proposed to choose Option 1: As part of NIA.*	**The proposal to include assessment of Parliamentarians came from the both the houses during the presentation of Annual Report last year. Thus, concerned officers from NA and NC were involved while developing the concept on PII. Moreover, globally also, such an assessment is done and for need of data, the Commission directed the division to write to both houses noting their adoption of the assessment. Also, include in letter the option chosen to conduct Parliamentarian assessment, thus their support during interview is requested.**
2.	**Seek endorsement on the financial power as per FMM 2016 along with forms- AFS, SS** *Based on notification from MoF and on recommendation from the 3rd Finance Committee meeting, AFS presented the financial power and delegation of power as per FMM 2016 (details attached as Annexure 1).* *Moreover, as mandated by notification no. DPA/e-PEMS-SDS/2020-21/857 dated 21 April 2021 from MoF, "the Agency Users shall provide the financial reports on a regular basis to the Head of budgetary bodies for timely monitoring*	• **For approving authority for travel, all Heads to be put under Chairperson and staff of LD and TSD to be put under Commissioner A Karma Rinzin. However, financial approval of LD and TSD to be approved by Chairperson.** • **Directed AFS to issue office order on the delegation of power.** • **On personal advance, remined all Heads to ensure there is discipline and let staff know it's just to ease burden and not as a mean of entitlement.** • **With regard to the report, directed AFS to put a remark column to flag off**

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	and reporting purposes. Therefore, the reports can be used as an input in the M&E systems to be developed by PPD.	**concerns and draw the attention of the management at the earliest.**
3.	**Discuss on the application received regarding the Kashithang Bacho- LD & SS** *Commission received a letter on 26 August 2022 regarding a request to appoint Mr. Kesang Wangchuk, resident of Kashithang, Chang Gewog and employee of BBS as a manager of the Kashithang Bacho (@ACC Housing Colony.) Along with it, five points for approval was sought (Letter attached as Annexure 2.)* *Commission noted that since the housing project could not start, the bacho was allowed for use by the employee of ACC and BBS, as an institutional arrangement.*	**While noting the decisions made, the Commission decided to redeliberate the agenda in 95th Commission Meeting.**
4.	Present update on IVS- DoPS *Department presented the status on IVS as follows:* • *System is rectified. However, looking at how to integrate the judgement implementation and petty misdemeanor in the system;* • *Working on constitutional offices impeachment;* • *Making checklist on offences; and* • *In coordination with LD, drafted the Rule and submitted to Commissioner-in-charge for review and comments.*	**While noting the progress, given that IVS has been included as MI, the concern and acceptance from stakeholders are high. Thus, need to ensure accurateness of data. Therefore, directed department to dedicate time and look at the information maintained in files and if required be, consult the concerned IOs on recalling the decisions. Since, the decisions of IVS will have implication on the lives of individual, need to ensure accurateness of the information in the system.** **The department to dedicate the September month and simulate the data collected within department and present to Commission and for those files with no information, Commission to make decision.** **Directed LD to expediate adoption of Model Code of Conduct before launch of IVS.**
5.	**Apprise on invitation from TI regarding the International Anti-Corruption Conference (IACC) conference from December 6-10 in Washington DC, USA – PPD** *PPD apprised on the invitation received*	**While the opportunity to attend the meeting in-person seems great mainly to be able to connect with other Anti-Corruption Agencies, the Commission directed PPD to request for a virtual session.**

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	from Transparency International for Chairperson to be a panel member during the International Anti-Corruption Conference (IACC) conference from December 6-10 in Washington DC, USA.	
6.	**Presentation and approval on the Guest Room Management System – P/ling Field Office** *The head of P/ling Field Office presented the system to book and check the availability of rooms at the P/ling office.*	• **The Commission approved and applauded the team for the system. As for hosting, directed to talk with ICTS and try integrating with the ACC App.** • **Directed to try integrating the payment like how tax is done.** • **Put option to send invoice through email.** • **The inventory of the items to be also captured in the system.** • **Include, options to view the room layout to let individual choose their preferred room.** • **Generate months report on occupancy rate and outstanding bills.**
7.	Appraise on systemic recommendations pertaining to Case 12/2021 - DoI & LD *The team presented the administrative and systemic recommendation related to MDP case.*	While specific comments were noted on the recommendations proposed, following directions were provided: • **Include recommendation on Agent banking. Acknowledge that while some kinds of measure are taken, nonetheless needs to be looked into. Check the recommendation letter sent to RMA pertaining to agency banking for cross reference.** • **Recommend agency concerned propose for renumeration or incentivizing their staff depending on the vulnerability as one of the recommendations.** • **List all the modus operandi along with recommendation like in the letter sent to BDBL and send to all concerned agencies with note staying interest only to their own jurisdiction. Also give them a reasonable time to address the issues and accordingly, caution them for their supervisory failure in case of such lapses in the near future.**
8.	Others:	

Commissioner **Commissioner** **Chairperson**

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Changes required with the recent requirement from MoF and as per FMM 2016

Sl.	Activity	Current practice	New requirement
1	Travel	The approving authority in eDATS was decentralised till the Chief/Officer level	With the recent changes in place, MoF has provided only 4 approving authorities in eDATS to ACC as per the notification attached. However, after making numerous request to MoF, we have received an email approval from MoF for 5 approving authorities under ACC. Hence, the staff under ACC have been mapped to approving authorities in eDATS as follows; I. Travel claims of 2 Commissioners; 2 Directors; Offtg. Director, Dept. of Prevention & Education; Heads of secretariat Services, Policy & planning Division, Legal Division and Technical Support Division will be approved by Dasho CP in eDATS; II. Travel claims of staff under secretariat Services, Policy & planning Division , Phuntsholing Field Office and Dept. of Prevention & Education will be approved by Dasho Jamtsho in eDATS; III. Travel claims of staff under Trashigang & Bumthang Regional Offices, Technical Support Division and Legal Division will be approved by Dasho A Karma Rinzin in eDATS; IV. Travel claims of DoI staff will be approved by DoI Director V. Travel claims of DoPS staff will be approved by DoPS Director. **Note: Finance Section has already mapped the staff to approving authorities in eDATS. Hence, the approving authority will automatically appear while submitting your claims.**
2	Payments/ advance adjustments	The bills were verified by focal officers and submitted directly to Secretariat Services for payment	Any payments/ advance adjustments shall be supported by a sanction note. The format of the sanction note is attached in the email as ***annexure 1***.

			Note; In the "submitted by" column, it can be signed by the person whoever is submitting the bill; The division Chief will sign in the "verified by" column. For the "approved /not approved column", the signing authority will be as follows; I. Technical Support Division & Legal Division-Dasho Chairperson II. Bumthang & Trashigang Regional Offices –Dasho A Karma Rinzin III. Secretariat Services, Phuntsholing Field Office, Dept. of Prevention & Education and Policy & Planning Division-Dasho Jamtsho IV. Dept. of Investigation- Director, DoI V. Dept. of Professional Support- Director, DoPS
3	Official advances	A letter/ Note sheet/ Application was submitted for any official advances	For release of official advances, the format for advance note is attached in the email as ***annexure 2*** which can be submitted in place of letter/ application/approval. Note; In the "TAH details" column, the details of the person taking the advance shall be mentioned. The Division Chief will sign in the "Claim recommended by" column. For the "approved /rejected column", the signing authority will be as follows; I. Technical Support Division & Legal Division-Dasho Chairperson II. Bumthang & Trashigang Regional Offices –Dasho A Karma Rinzin III. Secretariat Services, Phuntsholing Field Office, Dept. of Prevention & Education and Policy & Planning Division-Dasho Jamtsho IV. Dept. of Investigation- Director, DoI V. Dept. of Professional Support- Director, DoPS

4	Personal advances	A letter/ Application was submitted for any personal advances	For release of personal advances, the format for advance note is attached in the email as ***annexure 3*** *w*hich can be submitted in place of letter/ application. Note; In the "TAH details" column, the details of the person taking the advance shall be mentioned. For the "approved /rejected column", the signing authority will be as follows; I. Technical Support Division & Legal Division-Dasho Chairperson II. Bumthang & Trashigang Regional Offices –Dasho A Karma Rinzin III. Secretariat Services, Phuntsholing Field Office, Dept. of Prevention & Education and Policy & Planning Division-Dasho Jamtsho IV. Dept. of Investigation- Director, DoI V. Dept. of Professional Support- Director, DoPS

The Commissioner
Anti Corruption Commission
Kawang Jangsa
Thimphu

Wednesday, 24 August 2022

Respected Dasho,

Sub: Kashithang Bacho, Chang Gewog, Thimphu

With due respect, I would like to bring the following matter to your kind notice and subsequent cooperation and support.

As informed earlier, I have created an archery range (*bacho*) located at Kashithang on your land. The *bacho* currently measures 140 meters and fresh drinking water is also connected at both ends of the *bacho* for our convenience. I have also planted over 30 willow trees and few dogwood trees. Most of the trees have survived and it is growing very well. Due to the continuous flow of fresh drinking water, a wonderful pond is also formed. This has contributed to the habitat of local wild life such as deer, wild boars and pheasants to thrive.

As some of you have already played at Kashthang *bacho*, it is currently a beautiful place for family picnic too. This has attracted some attention of our urban dwellers and it is becoming a place where people can ponder and leave their rubbish. Also, with the closure of Changlimithang *bacho* in Thimphu, I have observed that there has been some public interference at the *bacho*. As a resident of Kashithang and the creator of the *bacho*, I am genuinely concerned about the future of this wonderful place. I would therefore like to suggest the following for your kind approval:

1. The current length of the *Bacho* is 140 meters which is not adequate for the standard 145 meters length. It is therefore, suggested to be extended by another five meters. This is feasible and it can be achieved without damaging the landscape.

2. The path leading to both ends of the *bacho* pass across the middle of the *bacho* alignment, which is unsafe for the players. This path needs realignment to avoid dangers. Again, this is feasible and it can be achieved without damaging the landscape.

3. Due to the closure of Changlimithang *bacho*, there has been some public interference. Such unrestricted public use of the *bacho*, may potentially damage the sanctity of the environment. It is therefore suggested that *bacho* be locked with the keys only available for ACC members and the *bacho* manager.

4. Since the *bacho* is located on ACC's land, it is suggested that some administrative arrangements must be established. Some notice about who is allowed to play and waste management guides, such as providing proper dustbins which must be place at both ends of the *bacho* and in the middle of the path way. A minimum fee of Nu. 100 must be collected from each player and some membership fee must be mobilized for the maintenance of the *bacho*. In particular the fees collected will be used to make some arrow friendly targets and periodical maintenance of the target back drops. A proper safety wall at both ends of the *bacho* is a standard requirement.

5. There does need to be some way of restricting use of the bacho to authorised players. To allow general public use of the *bacho* could give rise to issues of environmental degradation, waste management and other hazards.

With the above five points, I the undersigned would like to earnestly request the concerned authority to kindly recognize the undersigned as the founder and manager of the Kashithang Bacho. Therefore, to avoid any misconception, a letter of approval may be issued to the undersigned.

I look forward to your continued cooperation and support,

Thank you.

Yours respectfully,

Kesang Wangchuk
Kashithang, Chang Gewog, Thimphu.
17609032

ANTI-CORRUPTION COMMISSION
Diary No. 535
Date of Receipt 25/8/22

Hon. Coms / Head SS/LD
Dekar. Lets discuss at upcoming CM.
26/8/22